THE MASTERMIND COACHING CLASSES

CBSE / RBSE • NURSERY – CLASS XII • JAIPUR

Road No. 5, VKIA, Jaipur — 9887258679

ANSWER KEY & MARKING SCHEME SET A

Chapter 11: **The Role of the Judiciary** | Class 8 Social Science | Maximum Marks: 40

SECTION — A (Objective Type) — Answers — 10 × 1 = 10

Q.	Correct Option	Brief Reasoning
1	**(c)** social, economic and political justice	Foundation of the judicial system
2	**(a)** labelled certain communities as criminals by birth	Discriminatory colonial law
3	**(b)** 1991	Mid to late 20th century
4	**(b)** Supreme Court	Apex of the hierarchy
5	**(b)** 33 other judges	33+1
6	**(d)** Article 32	For enforcing Fundamental Rights
7	**(a)** sexual harassment at the workplace	Law passed in 2013
8	**(d)** pass any order needed to do complete justice	Special power
9	**(b)** High Court	Article 233
10	**(a)** Both A and R are true and R is the correct explanation of A	R explains A

SECTION — B (Very Short Answer) — Answers — 4 × 2 = 8

Q.	Expected Answer / Value Points	Marks
11	Fair treatment of everyone under the law (1). Ensures equality and dignity in society (1).	1+1
12	The organ of government that fairly decides disputes according to the law (1). Independent of the legislature and executive (1).	1+1
13	Substantive: fairness of the final outcome (1). Procedural: fair hearing and process before the decision (1).	1+1
14	A petition to enforce Fundamental Rights (1). Filed in the Supreme Court (Art. 32) or a High Court (Art. 226) (1).	1+1

SECTION — C (Short Answer) — Answers — 4 × 3 = 12

Q.	Expected Answer / Value Points	Marks
15	Laws are general rules made by government (1). Breaking them has consequences like fines or imprisonment (1). The judicial system lets people complain and be heard (1).	1+1+1
16	They were discriminatory (1½). They went against democratic principles; examples are the Criminal Tribes Act and Vernacular Press Act (1½).	1½+1½
17	Jim Crow laws kept African Americans out of public facilities (1). Apartheid divided people by race (1). Both were repealed later (1960s, 1991) (1).	1+1+1
	OR: Supreme Court at the apex (1). High Courts at state level (1). Subordinate or District Courts below (1).	1+1+1
18	Used to enforce Fundamental Rights (1). Supreme Court under Article 32 (1). High Court under Article 226 for the state (1).	1+1+1
	OR: Allow public issues to reach courts (1). First PIL freed about 40,000 under-trial prisoners (1). Vishaka case led to workplace guidelines (1).	1+1+1

SECTION — D (Long Answer) — Answers — 2 × 5 = 10

Q.	Expected Answer / Value Points	Marks
19	Role of laws (1). Colonial laws repealed, 1500+ (1). Two examples from India (1). Jim Crow laws (1). Apartheid (1).	1+1+1+1+1
	OR: Meaning of substantive justice (1½). Meaning of procedural justice (1½). Presumption of innocence (1). Example (1).	1½+1½+1+1
20	Establishment on 26.01.1950, Article 124 (1). CJI and 33 judges (1). Appointment by the President (1). Qualifications (1). Retirement at 65 and motto (1).	1+1+1+1+1
	OR: Original (1). Appellate (1). Advisory (1). Writ (1). SLP or Article 141/142 (1).	1+1+1+1+1

Evaluator's note: Award step marks as shown; accept any correct alternative method. In internal-choice questions, evaluate only the option attempted. Deduct up to ½ mark for missing units or figures where required.

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ANSWER KEY & MARKING SCHEME SET B

Chapter 11: **The Role of the Judiciary** | Class 8 Social Science | Maximum Marks: 40

SECTION — A (Objective Type) — Answers — 10 × 1 = 10

Q.	Correct Option	Brief Reasoning
1	**(a)** decide disputes fairly according to law	Fair adjudication
2	**(a)** freedom of the press	Repealed as unjust
3	**(d)** the fairness of the final outcome	Is the decision fair and reasonable?
4	**(a)** 26 January 1950	When the Constitution came into effect
5	**(d)** President of India	Article 124
6	**(d)** Article 226	Violation of rights within the state
7	**(d)** original jurisdiction	Article 131
8	**(c)** 25	Some states share a High Court
9	**(b)** environmental issues	A specialised tribunal
10	**(d)** A is false but R is true	A false; R true

SECTION — B (Very Short Answer) — Answers — 4 × 2 = 8

Q.	Expected Answer / Value Points	Marks
11	Public Interest Litigation addresses issues of public concern (1). Allows a case to be brought for the good of many people (1).	1+1
12	A lawyer who filed the first reported PIL (1). It led to the release of about 40,000 under-trial prisoners (1).	1+1
13	Power to hear certain disputes directly (1). Between the Centre and States, or between States (1).	1+1
14	Giving its opinion when the President seeks it (1). On a question of law or fact of public importance, by a bench of at least five judges (1).	1+1

SECTION — C (Short Answer) — Answers — 4 × 3 = 12

Q.	Expected Answer / Value Points	Marks
15	Appointed by the President under Article 124 (1). Qualifications such as being a High Court judge or advocate for years (1). Retires at 65 (1).	1+1+1
16	Original: Centre–State and inter-state disputes (1). Appellate: appeals from High Courts and tribunals (1). Advisory: opinion to the President (1).	1+1+1
17	Hears appeals from High Court final orders (1). Cases involving the Constitution, a substantial question of law or death sentence (1). Also appeals from tribunals like NGT (1).	1+1+1
	OR: Article 141: Supreme Court's law binds all courts (1½). Article 142: it can pass any order needed for complete justice (1½).	1½+1½
18	One in each state, though some are shared (1). Chief Justice and other judges (1). Appointed by the President after consultation; retire at 62 (1).	1+1+1
	OR: Hears appeals from subordinate courts (1). Superintendence over courts and tribunals under Article 227 (1). Power used sparingly (1).	1+1+1

SECTION — D (Long Answer) — Answers — 2 × 5 = 10

Q.	Expected Answer / Value Points	Marks
19	Meaning (1). First PIL by Kapila Hingorani (1). Release of 40,000 prisoners (1). M. C. Mehta case (1). Vishaka case (1).	1+1+1+1+1
	OR: 25 High Courts for 28 states (1). Appointment (1). Qualifications (1). Retirement at 62 (1). Jurisdiction including Art 226 and 227 (1).	1+1+1+1+1
20	Subordinate courts and their types (2). Appointment of District Judges (1). Tribunals (1). Examples (1).	2+1+1+1
	OR: (i) Substantive justice, fair outcome (1). (ii) Right to equality (2). (iii) High Court under Article 226 or Supreme Court under Article 32 (2).	1+2+2

Evaluator's note: Award step marks as shown; accept any correct alternative method. In internal-choice questions, evaluate only the option

attempted. Deduct up to ½ mark for missing units or figures where required.

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